

22STCV37633 22STCV37633

County: los-angeles

Division: Civil Law and Motion

Department: 307

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Case Number: 22STCV37633 Hearing Date: June 23, 2026 Dept: 307

4 TENTATIVE RULING 8:30 a.m., Tuesday, July 23, 2026

SID M

SAFIESLAMI v. LOS ANGELES COUNTY, et al. [22STCV37633]

MOTION

FOR SUMMARY JUDGMENT, OR ALTERNATIVELY, SUMMARY ADJUDICATION OF DEFENDANTS LOS

ANGELES COUNTY, LOS ANGELES COUNTY CHILD SUPPORT SERVICES DEPARTMENT, LAUREN

ORR, ROYE RANDALL, AND ALEXANDRA BAUER

BACKGROUND:

Action disputing enforcement of child support orders

TIMELINE:

Circa 1992: Plaintiff Sid M. Safieslami[1]

("Plaintiff") marries Defendant Maribel Blanco ("Blanco"). (FAC, ¶ 5.) They

separate shortly thereafter. (Ibid.)

Circa 1995: When Plaintiff seeks to dissolve

the marriage, Blanco alleges she had Plaintiff's child and retains counsel for

the dissolution of marriage action in the matter of Safieslamy v. Blanco

(LASC Case No. VD026398) at the Norwalk courthouse (the "Family Law Action"). (FAC,

¶ 6.)

2/18/1998: Blanco obtains a Default Judgment

against Plaintiff in the Family Law Action after his attorney fails to appear

at trial on 12/10/1997. (FAC, ¶ 7; RJN, Exh. D.) On 8/14/1998, Plaintiff

appeals the judgment and the Court of Appeal reverses the award of attorney

fees and sanctions against Plaintiff in the appellate matter captioned Safieslamy

v. Meraz-Blanco (Case No. B115086). (RJN, Exh. E.)

5/4/2000: After the Court of Appeal allegedly issues

a remittitur, the trial court in the Family Law Action issues a judgment for

attorney fees and costs and sanctions against Blanco in the amount of \$15,000.

(FAC, ¶ 9.) However, Plaintiff alleges that Blanco and attorneys for Defendant

Los Angeles County (the "County") "sanitized the files and removed records of

this case and removed the money judgments or any files or documents in

[Plaintiff's] favor." (Ibid.)

10/2/2000: Plaintiff requests a modification of

the child support orders in the Family Law Action and asks for a paternity test

of the child. (FAC, ¶ 10.)

Late 2000: Plaintiff and Blanco allegedly enter

into an agreement in which Blanco admitted that Plaintiff was not the child's

biological father and that all child support obligations would be terminated in

exchange for Plaintiff's waiver of the \$15,000 judgment against Blanco. (FAC, ¶

11.) Plaintiff alleges that Blanco then informed Defendant Los Angeles County

Child Support Services Department ("CSSD") of the parties' mutual agreement to

terminate child support. (Id. ¶ 12.)

Circa 10/2018: After Plaintiff executes a

settlement in an unrelated business contract lawsuit, CSSD places a lien on the

settlement for unpaid child support in the sum of \$36,000. (FAC, ¶¶ 15-16.)

CSSD and the County, by and through the County's employees, Defendants Lauren

Orr ("Orr"), Roye Randall ("Randall"), and Alexandra Bauer ("Bauer"),

(collectively, the "County Defendants"), retain the settlement funds per the

lien. (Id. ¶ 16.)

10/10/2018: In the Family Law Action, Plaintiff

files a Request for Hearing Regarding Earnings Assignment and a Motion to Set

Aside the lien. (FAC, ¶¶ 17, 19, 30; RJN, Exhs. F, G.)

11/20/2018: The County Defendants allegedly prepare

and file a "perjured" declaration to secure Blanco's telephonic appearance at

the family court hearing. (FAC, ¶ 20.)

12/27/2018: Plaintiff receives a call from Orr,

a County attorney, who informs Plaintiff of the CSSD's ability to place liens

on court judgments for unpaid child support. (FAC, ¶ 21.) Plaintiff alleges

that on the call, Orr threatened Plaintiff and expressed hatred for Iranian

Muslims. (Ibid.)

1/17/2019: The County Defendants allegedly file

a "fraudulent" document in connection with child support issue in the Family

Law Action. (FAC, ¶ 22.)

6/10/2018: The County Defendants allegedly

prepare and file a second "perjured" declaration to secure Blanco's telephonic

appearance at a family court hearing. (FAC, ¶ 23.)

6/13/2018: In the Family Law Action, the court finds

that Plaintiff owed over \$125,000 in child support arrears. (RJN, Exh. H.)

Circa 7/2019 to 12/2019: The County Defendants,

through Orr and Randall, allegedly continue to engage in "illegal" activities

in the Family Law Action, including by: (1) appearing ex parte to

dismiss Plaintiff's request, (2) threatening that they would recover Plaintiff's

unpaid child support by force, (3) expressing hatred for Iranian Muslims, and

(4) permitting Blanco to appear in court by telephone. (FAC, ¶¶ 24-27, 31-32.)

2/2020: On 2/10/2020, the court in the Family

Law Action denies Plaintiff's motion for attorney fees and sanctions against the County Defendants and Blanco and on 2/20/2020, the court enters orders setting child support arrears at \$125,039.92, requiring Plaintiff to pay \$250 per month toward the arrears, and permitting CSSD to release the funds held pursuant to the settlement lien to Blanco. (RJN, Exhs. K, L.)

8/14/2020: Plaintiff files an appeal of various rulings in the Family Law Action. (RJN, Exh. M.)

4/26/2021: The Court of Appeal dismisses Plaintiff's appeal. (RJN, Exh. N.)

3/4/2022: Plaintiff presents a Government Tort Claim to the County, which is rejected as untimely on 3/23/2022. (RJN, Exh. O.)

12/1/2022: Plaintiff files the Complaint. The operative

First Amended Complaint ("FAC"), filed 11/14/2023, alleges causes of action

for:

1. Breach of Contract
2. Breach of Covenant of Good Faith and Fair Dealing
3. Promissory Fraud/Fraudulent Inducement
4. Conspiracy and Aiding and Abetting
5. Rescission of Contract

6. Civil Rights Violations, 42 U.S.C. § 1983 (Violation of Fifth Am.)

7. Violation of Takings Clause & California

Constitution Article I, § 19

8. Civil Rights Violations, 42 U.S.C. § 1983 (Violation of Fourth Am.)

9. Civil Rights Violations, 42 U.S.C. § 1983 (Violation of Fourteenth Am.)

10.

Civil

Rights Violations, 42 U.S.C. § 1983

(Violation of Cal. Const. Article 1, § 7.)

11.

Violations

of the Unruh Civil Rights Act and the Bane Act

12.

Conspiracy

to Violate Plaintiff's Constitutional Rights

13.

Civil

Rights Violations, 42 U.S.C. § 1983

(Monell Violations Claims)

14.

Injunctive

Relief

2/13/2024: The County Defendants jointly file

an Answer to the FAC.

6/3/2025:

The County Defendants file a Motion for Summary Judgment ("MSJ"),

which

was set for hearing on 8/22/2025. However, on 8/18/2025, the Court vacates the

MSJ hearing and orders the MSJ to be refiled.

9/29/2025: The County Defendants re-file their MSJ[2],

which is followed by Plaintiff's Opposition (6/8/2026) and the County

Defendants' Reply (6/12/2026).

TENTATIVE

RULING: MOTION FOR SUMMARY JUDGMENT OF DEFENDANTS LOS ANGELES COUNTY, LOS

ANGELES COUNTY CHILD SUPPORT SERVICES DEPARTMENT, LAUREN ORR, ROYE RANDALL, AND

ALEXANDRA BAUER is GRANTED.

I. MOTION

FOR SUMMARY JUDGMENT

Plaintiff sues the County, CSSD, and the

County's employees in relation to their efforts to enforce child support orders

by the court in the Family Law Action against Plaintiff. (RJN, Exh. A.) The County Defendants now move for an order entering summary judgment in their favor, or alternatively, summary adjudication of the first through fourteenth causes of action. The County Defendants argue they are entitled to summary judgment/adjudication on the following grounds: (1) Plaintiff failed to timely file a Government Tort Claim and Plaintiff's federal civil rights claims are otherwise barred by the statute of limitations; (2) Plaintiff's claims amount to an improper collateral attack on the judgment in the Family Law Action and are prohibited by the doctrine of res judicata; (3) Plaintiff's claims for violations of the California Constitution are barred because there is no private right of action for such claims; (4) Plaintiff's common law tort claims are independently barred by the Government Tort Claims Act; and (5) the County attorneys (Orr, Randall, and Bauer) are entitled to prosecutorial immunity. For the reasons addressed below, the County Defendants' Motion for Summary Judgment is GRANTED.

A.

Plaintiff Fails to Demonstrate Timely

Compliance with the Claim Presentation Requirements of the Government Claims

Act

Plaintiff

fails to demonstrate compliance with the claim presentation requirements set forth by the Government Claims Act, which bars the County Defendants' liability for Plaintiff's state law claims in the FAC. Plaintiff's first through fifth and eleventh causes of action arise out of California common law and/or California statutes and are subject to the Government Claims Act. (See *Westcon Construction Corp. v. County of Sacramento* (2007) 152 Cal.App.4th 183, 190 (*Westcon*) ["A claim for breach of contract must be presented to the public entity within one year of accrual of the cause of action."]; see *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 375 [the claim presentation requirement applies to intentional torts]; see *Lozada v. City and County of San Francisco* (2006) 145 Cal.App.4th 1139, 1166 [confirming that the Government Claims Act applies to violations under the Unruh Civil Rights Act "where the money damages sought were not incidental or subsidiary to the plaintiff's interest in injunctive relief..."]; see *Towery v. State of California* (2017) 14 Cal.App.5th 226, 237 [holding that the Legislature did not intend to exclude Bane Act claims from the Government Claims Act].)

Where a

plaintiff files an action alleging "claims for money or damages" against public entities (or their employees) the public entity must be presented with a government claim in the form specified by Government Code ("Gov.

Code”) section 945.4. (City of Stockton v. Superior Court (2007) 42

Cal.4th 730, 738; Westcon, supra, 152 Cal.App.4th at p. 190,

citing Gov. Code § 945.6, subd. (a)(1).) Claims relating to causes of

action for death or injury to a person or to personal property must be

presented no later than six months after a cause of action has accrued, and a

claim relating to any other cause of action must be presented no later than one

year after the accrual of a cause of action. (Gov. Code § 911.2, subd. (a).)

These time limits for presentation of government claims are mandatory and

require strict compliance. (Torres v. County of Los Angeles (1989) 209

Cal. App. 3d 325, 327.) ““The filing of a claim is a condition precedent to the

maintenance of any cause of action against the public entity and is therefore

an element that a plaintiff is required

to prove in order to prevail.” (DiCampi-Mintz v. County of Santa

Clara (2012) 55 Cal.4th 983, 990; State of California v. Superior Court

(2004) 32 Cal.4th 1234, 1241 [timely claim presentation is a condition

precedent to filing a lawsuit].) Thus, summary judgment may be granted

based on the failure to comply with the Government Claims Act’s claim

presentation requirement alone. (See e.g. Del Real v. City of

Riverside (2002) 95 Cal.App.4th 761, 769.)

Here, Plaintiff

filed his government claim pertaining to the instant lawsuit on March 4, 2022.

(RJN, Exh. O.) On March 23, 2022, the County notified Plaintiff that his claim

was untimely as to any activities prior to March 4, 2021, consistent with the

one-year claim presentation deadline under Gov. Code section 911.2, subdivision

(a). Each cause of action in the FAC pertains to activities within or related

to the Family Law Action, which most recently concluded by court order in

February 2020. (RJN, Exhs. K, L.) In August 2020, Plaintiff appealed the orders

in the Family Law Action, but his appeal was dismissed in April 2021. (RJN, Exhs.

M, N.) Even so, the FAC does not identify any wrongful conduct during the

appellate proceedings which gives rise to the County Defendants' alleged

liability in this action. Instead, Plaintiff alleges the County Defendants'

wrongdoing occurred between October 2018 and December 2019 while determining

Plaintiff's child support arrears. (FAC, ¶¶ 19-27, 31.) Because the causes of

action against the County Defendants' accrued by December 2019 (or even by

February 2020 at the latest), Plaintiff's March 2022 government claim against

the County Defendants was untimely by over a year. (Gov. Code § 911.2, subd. (a).)

Plaintiff offers no explanation— either in the FAC or his opposition to this

motion— as to why he waited until March 4, 2022 to file his government claim. Accordingly,

the Court finds Plaintiff's first through fifth and eleventh causes of action

in the FAC are barred under the Government Claims Act.

B.

Plaintiff's Federal Civil Rights Claims Are

Necessarily Barred By the Two-Year Statute of Limitations

Although

Plaintiff's federal claims are not subject to California's Government Claims

Act, Plaintiff's federal civil rights claims are time-barred. Specifically,

Plaintiff's sixth, eighth, ninth, twelfth, and thirteenth causes of action

allege violations of the U.S. Constitution pursuant to 42 U.S.C. section 1983. For

claims brought under 42 U.S.C. section 1983, California applies the two-year

limitations period borrowed from California's personal injury statute. (DeGrassi

v. City of Glendora (9th Cir. 2000) 207 F.3d 636, 644 [applying

California's personal injury statute of limitations to section 1983 actions].)

The applicable California statute of limitations falls under Code of Civil

Procedure section 335.1, which provides that claims for "assault, battery, or

injury to, or for the death of, an individual caused by the wrongful act or

neglect of another" must be brought within two years. (Code Civ. Proc., § 335.1.)

As

described above, the FAC confirms that Plaintiff's claims against the County

Defendants accrued by December 2019 or, at the latest, February 2020. (FAC, ¶¶

19-27, 31.) Plaintiff did not file the Complaint in this lawsuit until December

1, 2022, over two years later. (RJN, Exh. P.) Based on the facts alleged on the face of the FAC alone, Plaintiff's federal civil rights claims are necessarily barred by the two-year statute of limitations under Code of Civil Procedure section 335.1. Although Plaintiff asserts that the limitations period was tolled pursuant to the delayed discovery rule, the doctrine of equitable tolling, or the continuing violations doctrine, these arguments are vague, conclusory, and unsupported by competent evidence, such as the submission of an "agreement" which has been continuously breached. (Opp., at pp. 8-9.) Accordingly, the Court finds that Plaintiff fails to raise a triable factual issue with respect to his federal claims.

C.

Plaintiff's Remaining Claims Arise From

Conduct Authorized by Law

As a threshold matter, the County Defendants argue that there is no private right of action for damages under the California Constitution. Plaintiff's seventh and tenth causes of action seek damages for violations of the California Constitution, Article I, sections 1, 7, 13 and 19.

(FAC, ¶¶ 76-77, 84-85, 87.) California law does not support a private right of action for damages under the due process and equal protection clauses of the California Constitution. (See *Gates v. Superior Court* (1995) 32

Cal.App.4th 481, 516 [plaintiff may not sue for damages under article I, section 7 for a violation of equal protection rights].) However, the County Defendants fail to submit legal authority negating a private right of action for violations of the right to privacy, the right against unreasonable searches and seizures, or the Takings Clause. (See *Barbee v. Household Automotive Finance Corp.* (2003) 113 Cal.App.4th 525, 530 [Article I, section 1 creates a right of action against government entities]; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 392 [“The California Supreme Court has also not decided whether there is a private cause of action for damages under article I, section 13, which protects against unreasonable searches and seizures.”]; *Property Reserve, Inc. v. Superior Court* (2016) 1 Cal.5th 151, 188 [“unlike the federal takings clause, the state takings clause affords a property owner the right to have just compensation ascertained by a jury unless waived.”].)

Even so, Plaintiff cannot show that he is entitled to damages, injunctive relief, or any other form of relief from the County Defendants based on the facts alleged in the FAC. The remaining causes of action against the County Defendants turn on Plaintiff’s allegations that the County Defendants have unfairly imposed a lien against Plaintiff’s court judgment and have taken “unfair” actions to collect court-ordered child support

arrears. (FAC, ¶¶ 1, 76,

84, 104, 105.) Beyond this conduct, however, Plaintiff has not alleged any clear

privacy violation or unlawful seizure of his property by the County Defendants.

With respect to his request for an injunction, Plaintiff expressly requests

that this Court set aside the orders in the Family Law Action, refund monies

taken from Plaintiff, and set a new trial in the Family Law Action. (Id.

¶ 104.) However, this Court does not have jurisdiction to reverse the orders of

the court in the Family Law Action or to make new findings related to

Plaintiff's child support obligations. Plaintiff offers no legal authority for

his position that he is permitted to collaterally attack the child support

judgment in the Family Law Action. Even if such orders were procedurally appropriate, the County Defendants

collection of child support payments from Plaintiff pursuant to court order

falls squarely within the scope of their statutory authority as the local child

support agency for Los Angeles. (See e.g. Fam. Code, §§ 17202, 17304, 17305,

17400, 17500.) Accordingly, Plaintiff is unable to establish the County

Defendants' liability for the remaining claims for violations of the California

Constitution or for injunctive relief as a matter of law.

Based on the aforementioned analysis, all

fourteen causes of action asserted against the County Defendants fail as a

matter of law and the Court need not consider the County Defendants' remaining

arguments. Therefore, the County Defendants' Motion for Summary Judgment is

GRANTED.

II. EVIDENTIARY

OBJECTIONS

Plaintiff

objects to Defendant's Exhibits B, C, D, E, F, G, H, I, J, K, L, M, N, and O

(Nos. 1-14). These objections are OVERRULED. As discussed below, the Court

finds these exhibits are proper subjects of judicial notice pursuant to

Evidence Code section 452, subdivisions (c) and (d). The County Defendants are

not relying on the truth of the factual findings asserted in these documents,

but merely the existence of the Family Law Action and the orders therein as

well as the existence of Plaintiff's government claim.

The

County Defendants object to Plaintiff's Exhibit 1 (No. 1) and Plaintiff's

Declaration, ¶¶ 7, 8, 9 (No. 2). The following evidentiary objections are SUSTAINED:

1-2 (relevance; see Code of Civil Procedure section 2033.410, subdivision (b)).

III. REQUESTS

FOR JUDICIAL NOTICE — GRANTED

The

County Defendants request judicial notice of the following documents: (1) the

Complaint and the FAC in the instant matter (RJN, Exhs. A, P); (2) various court records from the Family Law Action and related appeal between 1997 and 2000 (RJN, Exhs. B, C, D, E); (3) various court records from the Family Law Action and related appeal between 2018 and 2020 (RJN, Exhs. F, G, H, I, J, K, L, and N), and (4) the County's denial of Plaintiff's Tort Claim (dated 3/23/2022) (RJN, Exh. O.) First, the Court takes judicial notice of the existence of the above-identified court records pursuant to Evidence Code section 452, subdivision (d). "While a court will take judicial notice of its own records in the same action... this does not mean that it takes judicial notice of and accepts as true and genuine every paper that appears in the file." (Kaplan v. Hacker (1952) 113 Cal. App. 2d 571, 574.) Likewise, while the Court cannot take judicial notice of hearsay statements asserted in the records of other courts, it may take judicial notice of the existence of such documents. (Johnson & Johnson v. Superior Court (2011) 192 Cal.App.4th 757, 768; accord Williams v. Wraxall (1995) 33 Cal.App.4th 120, 130, fn. 7.) Second, the Court takes judicial notice of the Government Tort Claim denial, and the existence and date of Plaintiff's government claim pursuant to Evidence Code section 452, subdivision (c). (See e.g. Fowler v. Howell (1996) 42 Cal.App.4th 1746, 1752–1753 [taking judicial notice of records reflecting Plaintiff did not properly file a government

claim].)

Defendants Los Angeles County, Los Angeles

County Child Support Services Department, Lauren Orr, Roye Randall, and

Alexandra Bauer to serve notice of ruling. This tentative ruling ("TR") shall

be the order of the Court unless changed at the hearing and shall by this

reference be incorporated into the Minute Order.

TR emailed to counsel and posted to Court's

website on 6/22/26 at 11:55

[1] The Court notes that Plaintiff

inconsistently spells his last name across court filings, including the

operative pleading. The Court adopts the spelling used in the caption of the

instant matter and intends no disrespect by any misspelling of Plaintiff's name.

[2] The hearing on the subsequently

filed MSJ is continued multiple times by joint stipulation.